

Ex 1901/23

Though matter is called twice no representation on behalf of the DHR.

On perusal of the order sheet the office has raised an objection stating that petition was not filed in time. As the decree for recovery dt 22.06.2011. The petition for executing the decree is ought to have filed well within 12 yrs, the 12 yrs expires on 22.06.2023 but petition is filed on 24.07.2023 which is after expiry of 12 yrs. Though this court has given sufficient opportunity to the DHR to make out the grounds whether their petition is filed in time or not, but they remained absent continuously. If these aspects are considered the DHR may not be interested to prosecute this petition. However call this matter again at 2.45 pm.

13/02/2024
XII Add.CC & SJ., B'luru

Matter is called again at 5.45pm
No representation on behalf of Dhr.
Thus petition is dismissed for default.

13/02/2024
XII Add.CC & SJ., B'luru